

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

September 8, 2008

The Governing Body of the City of Cheyenne met in regular session on this date at 6:00 p.m. in Council Chambers. Present were: MAYOR-Jack R. Spiker; COUNCIL MEMBERS-Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Laybourn, Mr. Pierson, Dr. Rinne (arriving at 6:12 pm), Mr. Segrave and Mr. Valdez. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Claudia Angelos, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests, in which event the item will be removed from the Consent Agenda and considered in its normal sequence on the agenda.) Upon request by Mr. Laybourn, Mayor Spiker announced agenda items #5, 6, 7, 24, 29(a)(b)(c), 32(a) and 34(a) would be removed from the Consent Agenda. Comment was made pertaining to removal of Consent Agenda items. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Valdez. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mr. Laybourn voting "no".

MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON AUGUST 25, 2008. Mr. Pierson moved to approve, seconded by Mr. Valdez. Motion carried. Voting "yes" – all members of the governing body present.

MINUTES FROM SPECIAL MEETING OF THE GOVERNING BODY ON AUGUST 27, 2008. Mr. Brown moved to approve, seconded by Mr. Pierson. Motion carried. Voting "yes" – all members of the governing body present.

MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON SEPTEMBER 2, 2008. Mr. Brown moved to approve, seconded by Mr. Pierson. Motion carried. Voting "yes" – all members of the governing body present.

Mr. Collins moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Mr. Brown declared a conflict of interest (voucher payable to his business, Ameri-Tech HVAC Services) and vacated City Council Chambers. Upon inquiry, City Treasurer Barb Dorr provided information available on the following vouchers payable to: Appraisals, Inc. (\$1,250.00), appraisal of land at the corner of Dell Range Blvd. and Windmill Rd; Reiman Corp. (\$594,393.19; \$66,043.69 retainage), Norris viaduct construction contract, and Ziebart Consulting, LLC (\$4,000.00), lobbyist consultant fee per contract. Discussion included staff authorized to sign Norris viaduct construction project vouchers with Ken Lewis, City Engineer, advising he is the overall project manager and that he delegates certain responsibilities to staff. Concern was expressed regarding accountability involving services provided by Ziebart Consulting. Motion carried. Voting "yes" – all members of

the governing body present in Council Chambers with the exception of Ms. Case and Mr. Laybourn voting “no”. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Spiker opened a public hearing for the purpose of receiving comments and input for a transfer of ownership for a retail liquor license application filed with the City Clerk’s Office for ENI, Inc. d/b/a Eagle’s Nest, 1101 W. Lincolnway, Cheyenne, WY (License currently held by Eagle’s Nest, Inc. d/b/a Eagle’s Nest, 1101 W. Lincolnway, Cheyenne, WY). Jim Salisbury, attorney, Riske, Salisbury and Kelly law firm, representing ENI, Inc. and Eagle’s Nest, Inc., stated the application for transfer of ownership was for business and tax planning purposes. (Clerk’s note: Dr. Rinne joined the meeting in progress during comments.) There being no further comments or input and purpose of the hearing having been met, Mayor Spiker closed the hearing and referred the application to Finance Committee.

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, PUBLIC ROAD AND ALLEY RIGHT OF WAY SITUATED IN THE NW¼ OF SECTION 27, T.14N., R.66W. LARAMIE COUNTY, WYOMING (LOCATED NORTH OF PERSHING BOULEVARD, SOUTH OF DELL RANGE BOULEVARD AND EAST OF GROVE DRIVE AND WEST OF COLLEGE DRIVE).” Reporting for Public Services Committee, Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body. (#3819)

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, A PARCEL OF LAND DESCRIBED AS LOT 16, BLOCK 1, DOWNEY ADDITION, LARAMIE COUNTY, WYOMING (AKA 3324 LAND COURT).” Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body. (#3820)

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, PARCELS OF LAND DESCRIBED AS THE NORTHERLY PORTION OF LOT 1, BLOCK 1 INCLUSIVE OF THE 16 FOOT UTILITY EASEMENT, ROGERS SUBDIVISION AND LOTS 3 THROUGH 5 AND THE NORTHERLY HALF OF ADJACENT VACATED ALLEY, BLOCK 2, COULSON ADDITION, LARAMIE COUNTY, WYOMING (LOCATED SOUTH OF AND ADJACENT TO MESSENGER COURT, WEST OF MCCANN AVENUE).” Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body. (#3821)

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, PARCELS OF LAND DESCRIBED AS THE WEST 60-FEET OF THE EAST 120-FEET OF TRACT 336, SUNNYSIDE ADDITION, SEVENTH FILING, LARAMIE COUNTY, WYOMING (AKA 3616 AND 3618 RAWLINS STREET).” Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body. (#3822)

“AN ORDINANCE VACATING MCCOMB AVENUE BETWEEN W. LINCOLNWAY AND W. 17TH STREET AND THE 16-FOOT ALLEY WITHIN BLOCK 401, ORIGINAL CITY, CHEYENNE, WYOMING (LOCATED BETWEEN MISSILE DRIVE AND MCCOMB AVENUE

AND BETWEEN W. LINCOLNWAY AND W. 17TH STREET).” Hu Wang, property owner in the near vicinity, spoke in opposition to the vacation, advising he did not receive notice on the proposed action; commenting that closing the street would affect tenants who rent property from him, and expressing safety concerns. Upon inquiry regarding notification requirements to area property owners, Martin Matsen, Development Director, stated notification by the applicant, as required by Subdivision regulations, to property owners within a certain distance may be either personally or by certified mail (return receipt). John Steil, Steil Surveying Services, agent for the applicant, advised a notice was sent by certified mail to the address on record at the County Assessor’s office but that a return receipt had not been received. Mr. Collins moved to approve on third and final reading with Planning Commission recommendation #1, seconded by Mr. Brown. Discussion included property owner notification requirements pursuant to Mr. Wang’s comments. Mr. Laybourn moved to postpone for two weeks (to Sept. 22), seconded by Mr. Pierson. Motion carried. Voting “yes” – all members of the governing body. It was advised the item would be reviewed at the next Public Services Committee meeting to be held on Sept. 16th at noon.

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM LI LIGHT INDUSTRIAL AND MUB MIXED USE WITH BUSINESS EMPHASIS DISTRICTS TO P PUBLIC DISTRICT FOR A REPLAT OF BLOCK 1, LOT 1, KIWANIS ADDITION; A PORTION OF 11TH STREET, ORIGINAL CITY; THE HOLMQUIST ADDITION BEING A PORTION OF BLOCKS 512 AND 513, ORIGINAL CITY INCLUDING A PORTION OF VACATED 10TH STREET AND AMES AVENUE; A PORTION OF BLOCKS 2, 3, 4, 8 AND 9, AND ALL OF BLOCKS 5, 6 AND 7, INTERIOR HEIGHTS SUBDIVISION, THOSE PARCELS DESCRIBED IN WARRANTY DEEDS BOOK 1841 AT PAGE 889 AND BOOK 1841 AT PAGE 938, AND A PORTION OF THE S½ OF SECTION 6, T.14N., R.66W., 6TH P.M., CHEYENNE, WYOMING TO BE KNOWN AS DAVID R. ROMERO SOUTH CHEYENNE COMMUNITY PARK (LOCATED SOUTH AND EAST OF AND ADJACENT TO PARSLEY BOULEVARD, WEST OF DILLON AVENUE).” Mr. Collins moved to approve on third and final reading, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body. (#3823)

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM HR-2 HIGH-DENSITY RESIDENTIAL-DEVELOPING DISTRICT AND MR-1 MEDIUM-DENSITY RESIDENTIAL-ESTABLISHED DISTRICT TO CB COMMUNITY BUSINESS DISTRICT FOR A PORTION OF SOUTH PARK ESTATES, 2ND FILING AND INTERIOR HEIGHTS, STANFIELD 3RD ADDITION AND PORTIONS OF BLOCKS 713-714, 754-756 AND 775-777, ORIGINAL CITY, CHEYENNE, WYOMING (LOCATED NORTH OF I-80, BETWEEN WALTERSCHEID BOULEVARD AND PARTOYAN DRIVE AND SOUTH OF W. 5TH STREET).” Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Upon inquiry, Martin Matsen, Development Director, clarified Planning Commission condition #1 was included with approval of the ordinance on second reading. Motion carried. Voting “yes” – all members of the governing body. (#3824)

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM MR-1 MEDIUM-DENSITY RESIDENTIAL-ESTABLISHED DISTRICT TO MUB MIXED USE WITH BUSINESS EMPHASIS DISTRICT FOR THE NORTH 106-FEET OF LOT 8, AND ALL OF LOTS 9 AND 10, BLOCK 8, A CORRECTED REPLAT OF LOGAN HEIGHTS, CHEYENNE, WYOMING (LOCATED EAST OF LOGAN AVENUE BETWEEN E. 19TH STREET AND CHEYENNE PLACE).” Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body. (#3825)

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, PARCELS OF LAND DESCRIBED AS A TRACT OF LAND SITUATED IN A PORTION OF THE NW¼ OF SECTION 8, AND A PORTION OF WALTERSCHEID BOULEVARD SITUATE IN A PORTION OF THE NE¼ OF SECTION 7 AND A PORTION OF THE NW¼ OF SECTION 8, T.13N., R.66W. OF THE 6TH P.M. AND A PORTION OF WEST JEFFERSON ROAD LYING BETWEEN THE WESTERLY RIGHT-OF-WAY LINE OF THE SOUTH GREELEY HIGHWAY AND THE WEST LINE OF TRACT 16 ALLISON TRACTS, LARAMIE COUNTY, WY (LOCATED S. OF AND ADJACENT TO FOX FARM RD. AND E. OF AND ADJACENT TO WALTERSCHEID BLVD.)” -- due to postponement from Aug. 11, 2008, the item was referred back to Public Services Committee.

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, PARCELS OF LAND DESCRIBED AS THE W ½ OF TRACT 10, AIRPORT VALLEY TRACTS, LARAMIE COUNTY, WY (AKA 5905 CROW ROAD).” Mr. Collins moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body.

“AN ORDINANCE VACATING THE ALLEY IN BLOCK ONE AND THE ALLEY IN BLOCK 2 OF OSTDIEK SUBDIVISION, CHEYENNE, WYOMING (LOCATED EAST OF WILLS ROAD, BETWEEN CHARLES AND CHEYENNE STREETS)” -- referred to Public Services Committee (sponsor - Mr. Collins).

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM LR-2 LOW-DENSITY RESIDENTIAL-DEVELOPING DISTRICT TO NB NEIGHBORHOOD BUSINESS DISTRICT FOR THE SOUTH 130-FEET OF THE WEST 100-FEET OF TRACT 2, SKYLINE TRACTS, CHEYENNE, WYOMING (LOCATED AT THE NORTHEAST CORNER OF THE INTERSECTION OF STOREY BOULEVARD AND SYCAMORE ROAD)” -- referred to Public Services Committee (sponsor - Mr. Collins).

“A RESOLUTION ADOPTING THE BELVOIR RANCH MASTER PLAN.” Mr. Collins advised there was no recommendation on the item from Public Services Committee. Dr. Rinne moved to acknowledge receipt of the report, seconded by Mr. Pierson. Upon inquiry, Jane Kulik, consultant, Wenk Associates, advised the total cost of the master plan was approximately \$186,000.00 and confirmed statements she had made at public meetings comparing the development plan to certain national parks due to the property's size, scale and types of use.

Comments of concern followed on consultants' attendance at public input meetings; unresolved public access to certain areas involving railroad/bridge crossings; identification of proposed activities that may be conducted on the property; reservoir areas; initial purpose of the ranch purchase, and fiscal concerns relative to the cost of implementing the master plan. Ms. Kulik advised of communications held with the Board of Public Utilities involving proposed reservoir areas. Comments continued on resolution wording that indicates the master plan identifies potential uses and envisions the types of possible opportunities the city may develop; support and non-support of the plan as submitted, and initial development of pedestrian, hiking and equestrian trails. John Fafoutakis expressed safety concerns with railroad crossing areas and train speeds. Following reiteration of the motion on the floor (to acknowledge receipt of the report), Mr. Pierson withdrew his second to the motion. Mr. Collins moved to adopt, seconded by Mr. Segrave. Matt Ashby, Urban Planning, requested the motion include recommended changes (from public comments) as contained in the staff report. Mr. Collins, with concurrence by Mr. Segrave as second to the motion, agreed to include the recommended changes outlined in the staff report in the main motion. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn voting "no". (#5069)

"A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYOMING STATUTE §15-1-402 EXIST FOR PROPERTIES SITUATED IN A PORTION OF SECTION 1, 12, AND 17, T.13N., R.67W., 6TH P.M., LARAMIE COUNTY, WY (LOCATED SOUTH OF I-80 AND PREDOMINANTLY EAST OF SOUTHWEST DRIVE)." John Fafoutakis spoke in opposition of the resolution due to safety and access issues involving a railroad track crossing, emergency services response, and size of a residential housing development project he heard was proposed for the area. Comment followed regarding the type of proposed development of the area. Mike Basom, attorney, Dray, Thomson and Dyekman law firm, representing the developer, referenced a written request for postponement he had submitted. Mr. Collins moved to adopt, seconded by Mr. Segrave. Mr. Collins moved to postpone for 4 weeks (to Oct. 13th) to allow the developer to have further discussions with property owners in the vicinity, seconded by Mr. Segrave. Gay Woodhouse, attorney representing property owners in the area, spoke in opposition to postponing the item, noting the developer's role that "drives" the annexation process. She reviewed concerns with state statutory compliance, property contiguity, Burlington Northern railroad corridor, safety hazards, and the area's vehicular and train traffic volumes. Mr. Basom advised the issues raised are what the developer would like to address within the postponement time frame. Comments followed on past attempts to annex the area, statutory criteria, railroad crossing concerns, and the request to postpone. Motion to postpone carried. Voting "yes" – all members of the governing body with the exception of Ms. Case, Mr. Laybourn and Mr. Valdez voting "no".

"A RESOLUTION AMENDING RESOLUTION NO. 5038 BY AUTHORIZING THE EXPENDITURE OF UP TO \$166,000.00 FROM THE 1% SPECIFIC PURPOSE SALES & USE TAX FUND TO FACILITATE ACQUISITION OF 3.5 ACRES OF PROPERTY AND ALL IMPROVEMENTS AND APPURTENANCES THEREON, LOCATED AT THE SOUTHWEST CORNER OF SNYDER AVENUE AND W. 10TH STREET, AND OWNED BY MRS. ELIZABETH BYRD, FOR THE DEVELOPMENT OF THE DAVID R. ROMERO SOUTH CHEYENNE COMMUNITY PARK." Reporting for Finance Committee, Mr. Segrave moved to adopt, seconded by Mr. Valdez. Upon inquiry, Teresa Moore, Parks and Recreation Dept., advised there may be additional land acquired for the park, and reviewed 1% specific sales and use tax funding allocated and expended for the park; status of work being conducted at the site, noting that

Phase I of the project is currently out for bid; budgeting needs for park development; grant funds received, and development plans for the park generally. Comments were made on funding for park development costs vs. property acquisition(s); grant funding received in addition to 1% funds; property re-zoning; project status, and park design involvement. Motion carried. Voting “yes” – all members of the governing body. (#5070)

“A RESOLUTION IN SUPPORT OF THE ALLOCATION OF FISCAL YEAR 2007-2008 WARD I CONTINGENCY FUNDS TO THE DAVID R. ROMERO SOUTH CHEYENNE COMMUNITY PARK, PARKS & RECREATION DEPARTMENT, OFFICE OF YOUTH ALTERNATIVES, BOTANIC GARDENS, TRANSIT DEPARTMENT, COMEASHELTER, AND TOWARDS A PARLIAMENTARIAN.” Mr. Segrave advised there was no recommendation on the item from Finance Committee. Mr. Laybourn moved to adopt, seconded by Ms. Case. It was noted the purpose of the resolution is to provide disclosure by Ward I Council members relative to use of their ward’s budgeted contingency funds. Mr. Laybourn moved to amend by removing Item #8, Parliamentarian, listed within the resolution and moving that item’s proposed designated funding amount of \$4,000.00 to Item #6, Parks and Recreation Dept. (Lions Park Rehabilitation) to reflect a total amount for Item #6 of \$8,600.00, seconded by Mr. Segrave. It was noted the primary purpose of the funding for Item #6 was for re-vegetation (soil amendment) of the park’s area along Central Ave. Pursuant to comment suggesting a change to the resolution’s entitlement relative to the proposed amendment, Mr. Laybourn agreed, with concurrence by Mr. Segrave as second to the motion, to also strike the phrase “and towards a parliamentarian” in the entitlement. Comments followed on: Use of each ward’s discretionary contingency funds without being in the form of a resolution voted upon by Council members of the other wards, intent and support and non-support of Item #8 (providing education, through consultant services, on parliamentary procedures), and the resolution serving as a courtesy to the public to advise how Ward I monies are being expended. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Mr. Brown voting “no”. It was clarified even though Item #4, Botanic Gardens (Children’s Garden), is a Botanic Gardens Foundation, not a budgeted Parks and Recreation project, the funding to be allocated (\$3,000.00) is for Botanic Gardens to acquire a bench to be placed within the Children’s Garden. Motion to approve as amended carried. Voting “yes” – all members of the governing body with the exception of Mr. Brown and Mr. Segrave voting “no”. (#5071)

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT OF DALE SUBDIVISION, A REPLAT OF LOTS 1, 2, 3, 4 AND PORTIONS OF LOTS 5, 8, 9, 10 AND 11, BLOCK 9, KELLEY ADDITION, CHEYENNE, WYOMING (LOCATED AT THE NORTHWEST CORNER OF THE INTERSECTION OF CONVERSE AVENUE AND NATIONWAY)” -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT OF DAVID R. ROMERO SOUTH CHEYENNE COMMUNITY PARK, A REPLAT OF BLOCK 1, LOT 1, KIWANIS ADDITION; A PORTION OF 11TH STREET, ORIGINAL CITY; THE HOLMQUIST ADDITION BEING A PORTION OF BLOCKS 512 AND 513, ORIGINAL CITY INCLUDING A PORTION OF VACATED 10TH STREET AND AMES AVENUE; A PORTION OF BLOCKS 2, 3, 4, 8 AND 9, AND ALL OF BLOCKS 5, 6 AND 7, INTERIOR HEIGHTS SUBDIVISION, THOSE PARCELS DESCRIBED IN WARRANTY DEEDS BOOK 1841 AT PAGE 889 AND BOOK 1841 AT PAGE 938, AND A PORTION OF THE S½ OF SECTION 6, T.14N., R.66W., 6TH P.M., CHEYENNE, WYOMING (LOCATED SOUTH AND EAST OF AND ADJACENT TO PARSLEY BOULEVARD, WEST OF DILLON

AVENUE)” -- referred to Public Services Committee (sponsor - Mr. Collins).

PRELIMINARY PLATS/PRELIMINARY ZONE CHANGES:

[CA] Preliminary Plat for Candlewood Subdivision, a replat of the W½ of Tract 10, Airport Valley Tracts and Lots 2 and 3, Block 1, Guy Subdivision, Cheyenne, Wyoming (located east of and adjacent to Crow Road, south of Storey Boulevard) -- referred to Public Services Committee.

LEASES/CONTRACTS/LEGAL:

Professional Services Contract between the City of Cheyenne, Office of Youth Alternatives, and the State of Wyoming, Department of Family Services, for intensive support mentoring for youth in the Municipal Court System. Mr. Segrave moved to approve (\$63,000.00), seconded by Mr. Brown. Upon inquiry, Dick Berry, Youth Alternatives Director, provided information on use of the funding, purpose of the program and services provided. Motion carried. Voting “yes” – all members of the governing body. (#5297)

Contract between the City of Cheyenne, Police Department, Victim Witness Program, and the State of Wyoming, Division of Victim Services, for services to victims of crime. Mr. Segrave moved to approve in the amount of \$69,129.00, seconded by Mr. Valdez. Upon inquiry, Lt. Monti Allsop, Police Department, advised at the current time the program is adequately funded and includes grant funds, and briefly explained program services. Motion carried. Voting “yes” – all members of the governing body. (#5298)

Agreement between the City of Cheyenne, Laramie County, and Cheyenne Regional Medical Center for the purpose of creating an Emergency Medical Service Delivery System Joint Powers Board. Mr. Segrave moved to approve, seconded by Mr. Valdez. Upon inquiry, Chief Guy Cameron, Cheyenne Fire and Rescue Dept., clarified approval of the agreement will create a joint powers board (JPB) and advised the consultant cost relative to the review and evaluation of the current delivery system was approximately \$89,000.00. Comments followed on a JPB vs. governing body oversight of the agreement with the provider of emergency medical delivery system services; transparency; number of City JPBs and other boards, and improvements to system services as recommended by the consultant, which included the formation of a JPB. Chief Cameron stated the overall goal is to improve the system and meet community needs, and explained overlapping service areas under the current delivery system structure, citing, as an example, utilization of three different medical directors that could be consolidated into one director to provide more uniformity and less duplication. He indicated the investment in improving the system will help “pull areas together” to achieve economies of scale, eliminate or reduce fragmentation of services, improve costs and correct inefficiencies. During discussion, Chief Cameron spoke further on the purpose and role of the JPB, which will serve as the foundation for implementing service delivery improvements, and commented on streamlining the administrative process by having the service provider answer to only “one body”, JPB’s responsibility to evaluate and select the emergency medical service provider, and positive partnering of the agencies involved. He noted that Laramie County Commissioners and Cheyenne Regional Medical Center have approved the proposed agreement to create the JPB and discussed the

board's duties and accountability; state law provisions concerning JPBs; scenario of Board dissolution, if it is determined to do so in the future; agreement section addressing whether a party to the agreement wishes to withdraw from the JPB in the future, and advised an RFP (request for proposals) for emergency medical delivery services has been issued. Discussion included the following topics with additional information provided by Chief Cameron: Meetings held with the consultant and consultant's knowledge of delivery service issues; professionalizing emergency medical system delivery services; improving emergency medical pre-hospital services to the community; medical director role; opt-out clause in the agreement; designation in the agreement of JPB membership positions, and specific identification of members and their qualifications; opportunity to work together with the county to provide quality services to the community; utilization of public funds and diffusion of elected officials' responsibility, and JPB accountability. Motion carried. Voting "yes" – all members of the governing body with the exception of Ms. Case and Mr. Laybourn voting "no". (#5299)

[CA] Agreement between Laramie County School District No. 1 and the City of Cheyenne, Office of Youth Alternatives, for counseling services to elementary and secondary age children who are attending the PEP/TRC Center -- referred to Finance Committee.

[CA] Agreement between Laramie County School District No. 1 and the City of Cheyenne, Office of Youth Alternatives, for family counseling for school referred students who are in I.E.P.s -- referred to Finance Committee.

[CA] Agreement between Laramie County School District No. 1 and the City of Cheyenne, Office of Youth Alternatives, for family counseling for school referred students/families -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Metropolitan Planning Organization, and Quinby Clune Design for the "Cheyenne Wayfinding Plan Phase II"-- referred to Finance Committee

CHANGE ORDERS/CONTRACT MODIFICATIONS:

Following a five minute recess, Mayor Spiker reconvened the meeting at 8:20 p.m.

Contract Modification No. 1 to Contract No. 5280 (Norris Viaduct) to include bid alternates #1, 2, 3, and 5. Speaking in favor of financial investment through contract modification to provide aesthetic improvements were: Frank Cole, Cole Shopping Center; Sara Burlingame; Carol Matteson Pascal; Doran Lummis; Jason Thomas, President, Historic South Side Improvement Association (HSSIA); Mary Ramirez; Manuel Gallegos and Armand Gallegos. Topics presented and discussed included: Greenway access and area/community connectivity; project support generally; beautification efforts; community involvement through public input at Norris viaduct project planning meetings; green areas and amenities; maintaining voters' trust; creating safe neighborhoods; residents who have been displaced due to the project; elements of the HSSIA's neighborhood revitalization plan (pamphlet submitted and on file with office of City Clerk), and the project's importance on the neighborhood. Mr. Segrave moved to approve, seconded by Mr. Valdez. Comment followed in

support of the Norris bridge realignment project. Ms. Broyles moved to amend by striking alternates #1, 2, 3 and 5 and approving contract modification #1 from Reiman Corp. to include revised bid alternate #1, aesthetic lighting, in the amount of \$329,300.00 and alternate #5[b], color staining of MSE walls and viaduct, in the amount of \$84,219.40 for a total modification amount of \$413,519.40; project to be included in the City's application to the State Loan and Investment Board (SLIB) in the next funding cycle, seconded by Mr. Valdez. Upon inquiry by Mr. Thomas and Ms. Pascal, it was clarified that alternates #2, aesthetic railing on viaduct approaches, and #3, additional landscaping, were not included in the motion to amend, but as it is a two year project additional landscaping may be proposed toward the end of the project. It was also noted that the proposed amendment incorporates value engineering savings that has resulted due to discussions with the contractor. Upon request Jeff Fanning, Engineering Services Director, reviewed drawings of the proposed railing included in the base bid vs. a depiction of aesthetic railings, and drawings showing the lighting that will be provided through the base bid vs. proposed aesthetic lighting. Ms. Pascal commented on safety concerns for pedestrians relative to lighting. Mr. Fanning advised the same lighting effect will be achieved through the value engineering proposal; described decorative items (i.e. railing and concrete, with stamped pattern, design) already included in the base bid, and advised the base bid provides for some landscaping. Discussion included: Basic bid items already including more attractive design elements than other projects; stone pilasters being included in the decorative lighting; concrete staining and stamped pattern; unavailability of decorative railing; estimated project cost when voters approved the project vs. today's construction and supply costs; SLIB funding and correlation to upcoming Council work session to discuss potential SLIB funding requests for various City projects; fiscal responsibility; irrigation infrastructure to support any future additional landscaping; other potential funding mechanisms, including investment of project funds, and suggestion that a budget analysis for the entire project be prepared. Mr. Collins raised a point of order to clarify discussion earlier in the day at an Investment Committee meeting involved a monetary estimate as an example of investment funds, not an actual dollar amount. Comments continued on bid alternates as initially listed on the agenda; site plan issues; neighborhood meeting to review alternates proposed in the motion to amend; support for alternates proposed with the initial approval of the construction contract, and project management. Upon inquiry, Mr. Fanning further reviewed lighting differences in the base bid vs. aesthetic lighting. Mr. Segrave moved to call for the question to limit debate, seconded by Mr. Collins. Motion failed (due to a tie vote). Voting "yes" – Mr. Brown, Mr. Collins, Mr. Pierson, Mr. Segrave and Mayor Spiker. Voting "no" – Ms. Broyles, Ms. Case, Mr. Laybourn, Dr. Rinne and Mr. Valdez. Following further comment on quality project components, motion to amend failed (due to a tie vote). Voting "yes" – Ms. Broyles, Mr. Brown, Mr. Collins, Mr. Pierson and Mayor Spiker. Voting "no" – Ms. Case, Mr. Laybourn, Dr. Rinne, Mr. Segrave and Mr. Valdez. Mr. Laybourn moved to postpone for two weeks (to Sept. 22nd), seconded by Mr. Valdez. Mr. Thomas, Ms. Pascal and Mr. Manuel Gallegos spoke in favor of the postponement to allow for public involvement, clarification of proposed alternates, and budgetary and maintenance issues. Discussion followed on the purpose of postponement and what would transpire during the postponement time frame. Mr. Laybourn raised a point of order that comments being made were not relevant to the motion on the floor. Comments continued on postponement. Mr. Laybourn moved to call the question to limit debate, seconded by Mr. Segrave. Motion failed. Voting "yes" – Mr. Laybourn, Dr. Rinne, Mr. Segrave and Mayor Spiker. Voting "no" – Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson and Mr. Valdez. During further discussion on the

motion to postpone, a point of information was raised for clarification of procedures relating to potential amendments to the main motion. John Fafoutakis commented on the length of discussion time on the item, and Ms. Pascal and Mr. Manuel Gallegos made statements relative to the motion to postpone. Comments were made on postponing the item relative to the Council's work session scheduled later in the week to review proposed projects to submit for SLIB funding. Motion to postpone failed. Voting "yes" – Ms. Case, Mr. Laybourn, Dr. Rinne and Mr. Valdez. Voting "no" – Mr. Collins, Ms. Broyles, Mr. Pierson, Mr. Brown, Mr. Segrave and Mayor Spiker. Mr. Collins moved to amend by deleting alternates #1, 2, 3 and 5 and substituting alternate #5b, as revised through value engineering, to add stained concrete in the amount of \$84,219.40, seconded by Mr. Pierson. Upon inquiry, Mr. Fanning confirmed that under the value engineering proposal for alternate #5, the concrete staining would be the same quality and content as the bid, just a different manufacturer as the provider. Ken Lewis, City Engineer, requested if the amendment, or any additional amendments, are approved as bid alternates that the Mayor be directed to sign the appropriate contract change order pursuant to any amendment(s). Mr. Collins, with concurrence by Mr. Pierson as second to the motion, agreed to include Mr. Lewis' request in the motion to amend. Brief discussion followed on the procedural process involving the original main motion vs. the proposed amendment(s). Motion to amend carried. Voting "yes" – Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Mr. Valdez and Mayor Spiker. Voting "no" – Mr. Laybourn, Dr. Rinne and Mr. Segrave. Mr. Collins moved to amend to include bid alternate #1, revised through value engineering, in the amount of \$329,300.00 for aesthetic lighting, seconded by Mr. Pierson. It was noted the alternate includes the pedestrian lighting feature. Motion carried. Voting "yes" – Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Valdez and Mayor Spiker. Voting "no" – Mr. Laybourn and Mr. Segrave voting "no". Main motion as twice amended carried. Voting "yes" – Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Mr. Valdez and Mayor Spiker. Voting "no" – Mr. Laybourn, Dr. Rinne and Mr. Segrave.

CONSIDERATION OF BIDS:

[CA] Consideration of Bid #M-4-09 for purchasing a bulk ice control product for the Public Works Department for use on city streets, from Desert Mountain Corp., Riverton, WY (2003-2006 and 2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-5-09 for furnishing and installing one new stationary solid waste Knuckleboom Crane for the Transfer Station, from Northshore Manufacturing, Two Harbors, MN -- referred to Finance Committee.

LICENSES/PERMITS/APPLICATIONS:

Restaurant liquor license application filed with the City Clerk's Office for Primos Cheyenne d/b/a Scotty's Pizza Factory, 1802 Dell Range, Cheyenne, WY. Mr. Segrave moved to approve, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body.

APPOINTMENTS:

[CA] Appointment of Nicole Lindner to the Mayor's Council for People with Disabilities. Motion (per consent agenda) carried.

ANNOUNCEMENTS/REPORTS/MOTIONS:

City of Cheyenne Community Facility Fees Report for Fiscal Year 2008. Frank Cole questioned whether publication of the report would be provided, based upon the original intent of disclosure of report information (source and expenditure of funds). City Clerk Carol Intlekofer advised unless the Subdivision regulations provide for publication of the report, it will not be published in its entirety. Mr. Segrave moved to approve, seconded by Mr. Brown. Upon inquiry, Martin Matsen reviewed wording of the Subdivision regulations pertaining to the report and its contents and indicated there is no publication requirement. Mr. Laybourn moved to amend to require that report information contained in the agenda packet be printed in the meeting minutes, seconded by Ms. Case. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Collins, Mr. Segrave and Mayor Spiker voting "no". Upon inquiry, City Treasurer Barb Dorr explained cost allocation charges, as approved by the federal CDBG agency, allows the general fund to recover administrative charges from federal funds based on a cost ratio analysis. Motion carried. Voting "yes" – all members of the governing body. The City's Community Facilities Fees Report is as follows:

REVENUE		TO DATE ACTUAL
Fees	Western Vista	\$ 2,189.00
	The Bluffs, 7 th Filing	4,410.00
	Ramble On	945.00
	Frontier Refining	3,232.50
	J.C. Hancock	500.00
	ADVH Plat 33077	750.00
	Cadence Capital	1,125.00
	B&L Land Co.	32,250.00
	Miscellaneous	2,080.00
	Acquisition and infrastructure	52,750.00
	Refund-Saddle Ridge	(11,600.00)
Interest		14,945.54
Total Revenue		\$103,577.04
EXPENDITURES		
	Sun Valley Park	\$ 1,455.00
	Pointe Park	15,980.19
	Saddle Ridge	17,960.26
	North Lions Park	9,900.00
	Bike path - HR Ranch Rd	1,063.31
	Cost allocation charges	609.45
Total Expenditures		\$ 46,968.21
Revenue over (under) expenditures		56,608.83

Fund balance, beginning	333,479.40
Fund balance, ending	\$390,088.23

Request to extend the time period for one additional year in which retail liquor licensee HEJE, Inc., d/b/a Outlaw Saloon, 3839 East Lincolnway, Cheyenne, WY, is required to become operational or open for business pursuant to Wyo. Stat. §12-4-103(a)(iv). Mayor Spiker advised the item was being withdrawn from the agenda and requested City Clerk Carol Intlekofer provide further explanation. Ms. Intlekofer advised that, subsequent to Finance Committee meeting discussion, the Wyoming Liquor Division was contacted regarding when the initial 2 year time frame for “parking” the license would expire and it was agreed the initial time frame should not expire until March 31, 2009, therefore, the agenda item (requesting one additional year) at this time is a moot point. She advised when the licensee’s application comes before the governing body for the next renewal period, the licensee will need to show good cause for extending the “parked” time period for the license for one additional year if they are not operational by then. She clarified the City Attorney and herself had contacted the attorney representing HEJE, Inc. to advise the initial two year “parked” expiration date would not be until March 31, 2009, and it was agreed the licensee’s attorney, City Attorney and City Clerk would request the item be withdrawn from the agenda.

Announcement was made of a Public Meeting to be held September 22, 2008 at 6:00 p.m. in City Council Chambers to discuss the use of 2003-2006 1% Optional Sales Tax Overage Funds in the amount of \$147,280.00 for the purpose of reimbursing approved expenditures from the 2007-2010 Parks & Recreation Department’s 1% Optional Sales Tax Allocation.

Announcement was made of the reappointment of Paul Frauendienst to the Building Code Board of Appeals and Elizabeth Davis to the Greater Cheyenne Arts Advisory Council, to be confirmed September 22, 2008.

Announcement was made of the appointment of Richard Shanor to the Community Action of Laramie County Board, Robert Kanard to the Greenway Advisory Committee, Carrisa Pollard to the Planning Commission, Nicole Novotny to the Board of Adjustments, Jackie Smith to the Personnel Commission, and Phyllis Sherard to the Housing and Community Development Advisory Board, to be confirmed September 22, 2008.

OTHER CITY BUSINESS:

John Fafoutakis made statements on the following topics: Timing of a traffic light at 9th St. and Hwy 85; private attorney firm expenses for a legal opinion involving moving of buildings within the historic Governors’ Mansion area, and the City Council’s civility ordinance and comments made when items are removed from the Consent Agenda. City Engineer Ken Lewis advised the traffic light referenced by Mr. Fafoutakis was controlled by the State, but he would ask the traffic engineer to review the matter with WYDOT to ensure the signal was functioning properly.

Jan Nelson Schroll commented on a private attorney firm’s research on case law involving moving permits issued for buildings within the historic Governors’ Mansion area and submitted a

copy of City Code Chapter 2.64 pertaining to the Historic Preservation Board. She reviewed wording contained in chapter sections relative to intent and purpose of the chapter.

Responding to statements previously made under other City business by Mr. Fafoutakis concerning removal of consent agenda items, Mr. Segrave commented on his advocacy for efficient government and his support for a Consent Agenda format; and that he will exercise his rights to promote efficient government and use of the public's time.

Mr. Segrave moved to adjourn, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body with the exception of Ms. Case and Mr. Laybourn voting "no". The meeting was officially adjourned at 10:30 p.m.

Submitted by,

Carol A. Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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